STATE OF VERMONT

SUPERIOR COURT FAMILY DIVISION

Unit Case No. _____

Name of Child *(under 18 years of age)*	Date Of Birth		Defendant	Date Of Birth
		V.		

Petitioner's *(filing on behalf of child)* **Information:**

Name: _____

Date of Birth: _____

Relationship to Child: _____

Defendant's Information:

Name: _____

Street Address: _____

Town: _____ State: _____ Zip: _____

COMPLAINT FOR RELIEF FROM ABUSE ON BEHALF OF A CHILD

Relationship of the Defendant to the Child

- ☐ Parent/Guardian
- ☐ Family Member *(describe relationship)* _____
- ☐ Person who lives or has lived in the household with the child
- ☐ Child and defendant have or have had a dating relationship
- ☐ Other *(describe relationship)* _____

Existing Court Order or Proceedings

Is there an existing order or a pending court proceeding involving you, the Defendant, and/or the child(ren) in this Complaint?

	No	Yes		No	Yes
Divorce/Separation	☐	☐	Civil Union Dissolution	☐	☐
Relief from Abuse	☐	☐	Criminal	☐	☐
Parentage	☐	☐	Guardianship	☐	☐
Juvenile (DCF)	☐	☐	Child Support	☐	☐

State(s) _____ County _____

Attorney for Plaintiff _____ Attorney for Defendant _____

Facts

1. ☐ On _____ Defendant:

(date of most serious incident / date range of abuse)

- ☐ Abused the child named above (physically injured or otherwise treated the child named above in a manner which placed the child's life, health, development or welfare in jeopardy.) as defined in 33 V.S.A. § 4912(1)).
- ☐ Defendant is a parent/legal guardian for the child named above and either (1) inflicted physical punishment out of anger, or (2) physically punished the child named above in an excessive, unreasonable, or cruel manner.
- ☐ Coercively controlled the child named above as defined in 15 V.S.A. § 1101(2).
- ☐ Stalked the child named above as defined in 12 V.S.A. § 5131(6).
- ☐ Sexually assaulted or sexually abused the child named above as defined in 12 V.S.A. § 5131(5).
- ☐ Attempted to cause or caused physical harm to the child named above.
- ☐ Placed the child named above in fear of imminent serious physical harm.

2. ☐ There is danger of further abuse to ☐ the child ☐ other child(ren) in the household named below:

Name of Child	Date of Birth	Relationship to Petitioner	Relationship to Defendant
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

3. ☐ Defendant has used, displayed, or threatened to use a firearm against the child(ren) named above or against a family member.
4. ☐ Defendant is incarcerated and has been convicted of one of the crimes specified in 15 V.S.A. § 1103(c)(1)(B).
5. ☐ The child(ren) named above will be forced to leave their current residence and will be without shelter unless Defendant is ordered to leave the residence located at: _____.

   The residence is ☐ owned ☐ rented/leased in the name of the ☐ Petitioner filing on behalf of the child(ren) named above ☐ Defendant ☐ Both ☐ Other

Request for Relief

The Petitioner requests that the court:

- ☐ order Defendant to not abuse child(ren) named above and not interfere with personal liberty.
- ☐ order Defendant to refrain from stalking or sexually abusing the child(ren) named above.
- ☐ order Defendant to vacate immediately the residence (identified in #5 above) and sole possession be awarded to the Petitioner caring for the child(ren) named above.
- ☐ order Defendant to not possess or purchase firearms for the duration of the order.
- ☐ order Defendant to surrender immediately all firearms under Defendant's ownership, possession, or control to law enforcement.
- ☐ order Defendant to refrain from cruelly treating the pet(s) of the parties or the pet(s) of the child(ren) named above.
- ☐ award temporary possession and control of any pet(s) owned by the parties or by the child(ren) named above to the Petitioner.
- ☐ order Defendant to return any personal documents in their possession pertaining to ☐ Plaintiff and/or ☐ child(ren) named above (e.g. immigration documents, birth certificates, and identification cards)
- ☐ order temporary possession of vehicle to Plaintiff, provided that Plaintiff:
  - ☐ is the owner or joint owner of the vehicle
  - ☐ is the primary payor on the vehicle loan
  - ☐ has primary possession or control of vehicle
  - ☐ has been restricted from using the vehicle by the defendant.
- ☐ order Defendant to complete domestic violence accountability program approved by the Council on Domestic Violence.
- ☐ order Defendant to stay _____ feet away from the child(ren) named above in any way.
- ☐ order Defendant to refrain from contacting the minor child(ren) named above in any way.
- ☐ award the Petitioner filing the complaint temporary Parental Right and Responsibilities for the child(ren) named below: (Child(ren) of the Petitioner and Defendant)

Name of Child	Date of Birth	Relationship to Plaintiff	Relationship to Defendant
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

  ☐ Other: _____

- ☐ order Defendant's contact with the child(ren) named above supervised by: _____ at _____.

☐ order Exchanges of the child(ren) named above for parent child contact take place at _____ supervised by _____.

☐ order Defendant not to take any regulated drug unless it is prescribed to Defendant by a physician or drink alcohol for at least 8 hours prior to a scheduled contact or during contact with the child(ren) named above and that Petitioner may cancel scheduled contact if Defendant appears to be under the influence of intoxicating substances.

☐ order Defendant not physically punish the child(ren) named above in any way.

☐ order Defendant pay temporary child support for the child(ren) named above.

☐ Other: _____

☐ The Petitioner requests on an emergency basis the same relief as requested above, to the extent available

The facts to support this request for relief can be found on the Plaintiff's accompanying affidavit.

Date

_____ _____

Signature of Petitioner/ Petitioner's Attorney

_____

Printed Name